

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No. _____

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KEVIN WASHINGTON and MONTEL VARGAS,

Date Filed: _____

Plaintiffs,

SUMMONS

-against-

THE CITY OF NEW YORK, JEFFREY MATHIS, and
JOHN DOES #1-19, being the fictitious names of New
York City Police Department officers whose names are
unknown to Plaintiffs,

Pursuant to CPLR 504(3),
Plaintiffs designates New
York County as venue based
upon where the cause of
action arose.

Defendants.
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TO THE ABOVE-NAMED DEFENDANTS:

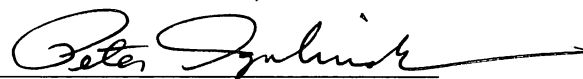
You are hereby summoned and required to serve upon Plaintiffs' attorney an answer to the complaint in this action within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Great Neck, New York
May 7, 2017

Yours, etc.,

PETER M. AGULNICK, P.C.

By



Peter M. Agulnick

Attorney for Plaintiffs

**KEVIN WASHINGTON and
MONTEL VARGAS**

8 Bond Street, Suite 303
Great Neck, New York 11021-2426
(212) 571-2266
(File # 426-001)

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK

C/O Zachary W. Carter, Esq.
New York City Law Department
100 Church Street
New York, New York 10007

JEFFREY MATHIS

New York City Police Department
1 Police Plaza
New York, New York 10007

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Defendants.

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Plaintiffs, through their counsel, for their complaint, state the following upon
information and belief:

PARTIES

1. Plaintiff KEVIN WASHINGTON is an individual.
2. Plaintiff MONTEL VARGAS is an individual.
3. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a
municipal corporation organized under the laws of the State of New York, in and as the
City of New York.
4. Defendant JEFFREY MATHIS is an individual who is a New York City
Police Department officer.
5. Defendant JOHN DOES # 1-19 are New York City Police Department
officers whose names and addresses are presently unknown to Plaintiffs.
6. The individual Defendants (that is, the individual police officers) are being
sued both in their individual capacity and in their official capacity as police officers
employed by Defendant THE CITY OF NEW YORK.

**PREREQUISITES TO SUIT AGAINST THE CITY OF NEW YORK FOR
STATE-LAW CAUSES OF ACTION**

7. Plaintiffs served a timely notice of claim(s) upon Defendant CITY within 90 days after Plaintiffs were falsely arrested and detained, as described in this complaint.

8. At least 30 days have elapsed since the service of such notice of claim(s) and that adjustment or payment has been neglected or refused.

FACTS

9. On May 15, 2016, at about 4:00 a.m., Plaintiffs were lawfully pedestrians at about the location of 110 9th Avenue in Manhattan.

10. On May 15, 2016, Defendant JEFFREY MATHIS and JOHN DOEs # 1 - 19 were New York City Police Department officers (all collectively will be hereinafter referred to as "Defendant Police Officers.")

11. On May 15, 2016, while Plaintiffs, who are black, were stopped for no reason by Defendant Police Officers.

12. A reasonable person or police officer should have known that Plaintiffs had committed no crime.

13. Defendant Police Officers had no warrant arrest Plaintiffs.

14. Defendant Police Officers otherwise had not other lawful reasons to arrest Plaintiffs.

15. Notwithstanding, Defendant Police Officers arrested and handcuffed Plaintiffs.

16. Prior to being handcuffed, Plaintiffs attempted to inform Defendant Police

Officers that they had committed no crime and that he did not want be handcuffed and go to jail.

17. Upon arrival at the jail, Plaintiffs were subjected to a humiliating search and was deprived of all money and personal belongings.

18. Plaintiffs were then incarcerated in a cell with criminals.

19. Eventually, Plaintiffs were released from jail and custody but not after many days.

20. Because Plaintiffs had done nothing wrong, the New York County District Attorney's Office declined to prosecute Plaintiffs.

FIRST CAUSE OF ACTION

(Violation of 42 U.S.C § 1983)

21. Plaintiffs repeat and re-allege every allegation in this complaint.

22. Defendant Police Officers intended to confine and completely confined Plaintiffs.

23. Plaintiffs were cognizant of the confinement.

24. Plaintiffs voiced objections to the confinement in which they did not consent.

25. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiffs in any way.

26. Defendant Police Officers acted under color of law as is defined in 42 U.S.C. § 1983 in confining and incarcerating Plaintiffs and in violating Plaintiffs' rights and discriminating against them because of their race.

27. Defendant Police Officers violated Plaintiffs' civil liberties and rights under the United State Constitution, including, but not limited to, the Bill of Rights, and rights under the New York State Constitution.

28. Pursuant to 42 U.S.C. § 1983, Plaintiffs are entitled to damages from Defendant Police Officers for violations of Plaintiffs' constitutionally protected civil rights.

29. Defendant CITY has maintained a system of review of police conduct that is so untimely and cursory as to be ineffective and has a policy to permit and tolerate the unreasonable and excessive use of force and lack of discretion in making arrests by police officers.

30. The acts, omissions, systemic flaws, policies, and customs of Defendant CITY caused Defendant Police Officers to believe that the excessive and unreasonable use of force and falsely arresting individuals, such as Plaintiffs based upon, among other things, racial motives, would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force and against Plaintiffs and in falsely arresting Plaintiffs and others in the future.

31. Consequently, pursuant to 42 U.S.C. § 1983, Plaintiffs are also entitled to damages from Defendant CITY for violations of Plaintiffs' constitutionally protected civil rights against.

32. Finally, all Defendants are liable for paying Plaintiffs an award of counsel fees in an amount to be determined by this court pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION**(False arrest/imprisonment)**

33. Plaintiffs repeat and re-allege every allegation in this complaint.
34. Defendant Police Officers intended to confine and completely confined Plaintiffs.
35. Plaintiffs were cognizant of the confinement.
36. Plaintiffs voiced strenuous objections to the confinement in which they did not consent.
37. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiffs.
38. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they confined and falsely arrested and imprisoned Plaintiffs.
39. Defendant CITY is, therefore, vicariously liable for falsely arresting and imprisoning Plaintiffs.
40. Thus, all Defendants are liable for falsely arresting and imprisoning Plaintiffs.

THIRD CAUSE OF ACTION**(Battery)**

41. Plaintiffs repeat and re-allege every allegation in this complaint.
42. Defendant Police Officers' acts were intentional.
43. Defendant Police Officers' conduct resulted in harmful, offensive, and nonconsensual bodily contact with the Plaintiffs amounting to the civil tort of battery.

44. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they battered Plaintiffs.

45. Defendant CITY, therefore, is vicariously liable for the battery that Defendant police officers inflicted upon Plaintiffs.

46. Thus, all Defendants are liable for the tort of battery.

FOURTH CAUSE OF ACTION

(Negligence)

47. Plaintiffs repeat and re-allege every allegation in this complaint.

48. Defendant Police Officers had a duty to protect and not arrest citizens who commit no crimes.

49. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiffs.

50. The actions of Defendant Police Officers caused Plaintiffs to suffer damages.

51. Consequently, Defendant Police Officers are liable for negligence.

52. Defendant Police Officers acted within the scope of their duties as police officers for Defendant CITY and in the interest of the CITY when they arrested Plaintiffs.

53. Defendant CITY, therefore, is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.

54. Thus, all Defendants are liable for negligence.

FIFTH CAUSE OF ACTION**(Negligent Hiring and Retention)**

55. Plaintiffs repeats and re-alleges every allegation in this complaint.

56. Defendant CITY had a duty to hire and retain competent police officers.

57. Defendant CITY knew, or should have known, that Defendant Police Officers were unfit to be hired and retained as police officers of the New York City Police Department.

58. Defendant CITY breached its duty to hire and retain competent police officers.

59. As a result of the CITY's breach, the Plaintiffs suffered damages.

60. Thus, Defendant CITY is liable for negligent hiring and retention of Defendant police officers.

WHEREFORE, Plaintiffs demands judgment as follows:

- (a) on the First Cause of Action (42 U.S.C § 1983), actual and punitive damages in the amount of \$2 million and, pursuant to 42 U.S.C. § 1988, attorney's fees against all Defendants;
- (b) on the Second Cause of Action (False arrest/imprisonment), actual and punitive damages in the amount of \$2 million against all Defendants;
- (c) on the Third Cause of Action (Battery), actual and punitive damages in the amount of \$2 million against all Defendants;
- (d) on the Fourth Cause of Action (Negligence), actual damages in the amount of \$2 million against all Defendants;

- (e) on the Fifth Cause of Action (Negligent Hiring and Retention), actual damages in the amount of \$2 million against Defendant CITY;
- (f) costs, disbursements, interest, and such other relief that is appropriate.

Dated: Great Neck, New York
May 7, 2017

Yours, etc.,

PETER M. AGULNICK, P.C.

By 
Peter M. Agulnick

Attorney for Plaintiffs

KEVIN WASHINGTON and

MONTEL VARGAS

8 Bond Street, Suite 303

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SUMMONS and COMPLAINT

PETER M. AGULNICK, P.C.

Attorney for Plaintiffs KEVIN WASHINGTON and MONTEL VARGAS

**8 BOND STREET, SUITE 303
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FAX (212) 656-1645**

This office does not accept service of litigation papers by electronic means except for cases where this office has consented to the case being designated an "E-file" case and, in those instances, we still do not consent to fax service.

Pursuant to 22 NYCRR § 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: May 7, 2017

Signature: _____



Name: _____

Peter M. Agulnick
